# [6]
# Should Mohammad Afzal Die?

Nirmalangshu Mukherji

On 4 August 2005, the Supreme Court delivered its judgement on the case relating to the 13 December 2001 attack on the Indian Parliament. It acquitted S.A.R. Geelani and Afsan Guru, and reduced the sentence for Shaukat Hussain Guru, absolving him of all charges of conspiracy. However, it upheld the judgement of the high court in sentencing Mohammad Afzal to death for actively participating in the conspiracy to attack the Parliament and waging war against the Indian State. It also described Afzal as a 'menace to the society', a man whose 'life should become extinct' to satisfy 'the collective conscience of the society'.[1]

Within a day, the *Hindu*, a respected newspaper known for its coverage of issues of human rights and justice, commented on this judgement in its editorial. It took a characteristically human view of the verdicts on Geelani, Afsan and Shaukat. For Afzal, however, the paper joined the judges in speaking on behalf of the 'collective conscience of the society': 'There is no warrant for any special sympathy for Mohammad Afzal whose role as a conspirator in the Parliament attack case— which has been detailed by the prosecution and confirmed by three courts of law—has been established beyond a shadow of doubt.'[2]

With three of the 'estates of democracy' surrounding him, Mohammad Afzal has little chance of escaping the hangman. More significantly, as the noose tightens, Afzal will die in silence. There is yet the legislature— the first estate. Is there a case for Mohammad Afzal before the forum of the people?

## Confession for the State

The judicial proceedings recorded two occasions on which Mohammad Afzal spoke before the law: his confessional statement before the police and his